



**DET KONGELEG
UTANRIKSDEPARTEMENT**

UTENRIKSDEPARTEMENTET

PRIVILEGEREDE INSTRUKSJONER

PRIVILEGED INSTRUCTIONS

**Ministry of Foreign Affairs
KINGDOM OF NORWAY**



Privileged Instructions

Fundamental Principles

- Norwegian Arctic claims extend to the North Pole.
- Peace, stability, and well-functioning cooperation with our Arctic neighbours.

Desired End States

- PRIMARY: Norwegian territorial integrity is preserved, and its resources developed by its people.
- ALTERNATE: International recognition of the Svalbard EEZ.
- Additional details tied to end states above:
 - Defend Norwegian interests in the Arctic including military, economic, and conservation efforts.
 - Strengthen the NATO alliance and its ability to respond to crises in the Arctic.
 - Reduction in tension between China, Russia, and the U.S. over the Arctic.

Primary Guidance Background

The Arctic region is an important crossroad where issues of climate change, international trade, and global security meet. With melting sea ice come opening of new shipping lanes and put the northern natural resources within reach. This increase in commercial traffic and tourism increase safety and security challenges.

As the Arctic Council Chair we have a responsibility to lead the discussion to promote stability and constructive cooperation. Our government has given priority to areas where climate and environmental efforts will be most effective. From the Hurdalsplattformen (in references), we indicated that our foreign policy is firm and that northern areas are Norway's most important strategic area of interest.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: Below are our positions during this conference. Deviations from these instructions are to be conferred with the Foreign Minister prior to negotiating.

Working through/with the Arctic Council member states is key to sustainable progress on any Arctic decision. Work closely with each Arctic Council member to sure up bilateral agreements in this multilateral body.

Our close ties with Denmark, Iceland, Finland, and Sweden go beyond our physical proximity. We share a common Scandinavian heritage and as such common values. The long history of our peoples living in the Arctic gives us a perspective like no other Arctic border states.

Despite Russia's invasion of Ukraine, we must return to our goal of developing bilateral cooperation with Russia on seas, resources, climate, and coastal-related issues. This does not excuse their actions, nor hinder pressure towards their complete withdrawal, but the Arctic issues we have with them must be resolved.

China's activities in the Arctic have been steadily growing. Through purchasing icebreaker vessels, conducting joint military exercises with Russia, and investing in infrastructure in Nordic nations their interests are gaining them a foothold in the region. The economic advantages, for their involvement in the Arctic, must be balanced with prudent management of their relationship(s) with Arctic nations.

Territory

We have considerable interest in the Arctic. We have a duty to protect our nation against foreign aggression as well as maintain control over our territory.

We honour the delineation of the different waters and zones defined within UNCLOS. Except for the U.S. the other Arctic states are signatories.

Our EEZ and continental shelf claims overlap with Denmark, and Russia. We must keep our interests on the rightful ownership of these areas governed by international law. We must define more clearly our marine areas and boundaries in the Arctic.

The Svalbard Treaty delineates the use of the Svalbard Archipelago for international usage, it also clearly states that Svalbard is Norwegian sovereign territory. This delineation grants us the UNCLOS defined EEZ surround it. We accept the Treaty's agreement that inside the 12 nautical mile territorial waters is for all signatory nations. But outside of territorial waters we adamantly claim the rights to the EEZ.

Our establishment of the Temporary Fisheries Protection Zone (TFPZ) is a temporary action until our EEZ surrounding Svalbard is rightly honored by Russia and other nations.

Red Lines:

Any agreement or regulation limiting our EEZ surrounding Svalbard.

Militarization

The increased militarization of the Arctic threatens the current peace and stability in the region. With the growing access to seaways and thawing of traditionally permafrost areas military operations are becoming easier to conduct.

We need to work, through international organizations, to ensure peace continues. Through the Arctic Council we must continue to emphasize demilitarizing the Arctic and resolving differences through dialog and diplomacy and not through might. We must encourage NATO to increase its collective capacity to conduct Arctic operations, along with highlighting the need for all NATO allies to assist in protecting member states from external aggression.

Along with Finland, we fear an American overreaction to increased Chinese and Russian activities in the Arctic. The potential conflict between these great powers could engulf the entire Arctic region and drag us into their regional disputes.

Our 2020 military cooperation agreement, with Finland and Sweden, will help to improve defensive capabilities and gain closer cooperation between our nations. Though some see this agreement as a

rebuke of NATO, with regards to the Arctic, it is merely an update to the agreement we have had since the 1950s.

Red Line:

Any foreign fleet establishing patrols in Norwegian sovereign waters surrounding Svalbard.

Resources

Mineral and non-mineral resources within Norwegian waters and land must only be explored, or extracted, by express permission of the Norwegian Government.

Each Arctic state should manage its own internationally accepted territory's resources. Where there are disputes the parties should resolve their differences through dialog and within the constructs of international organizations.

Arctic nations need to safeguard environmentally delicate areas and be responsive to any oil, or gas leaks. If preventative measures, and reactive ones, cannot be guaranteed then we highly encourage reduction of activities until one can ensure no environmental damage.

The EEZ and subsequent TFPZ surrounding Svalbard is in line with UNCLOS and other international treaties. The Svalbard Treaty clearly states that the Svalbard archipelago is Norwegian territory and that the limitations on our control over the territory is defined to within the territorial waters and inward. It is within our right to restrict other nations' use within our EEZ.

Arctic Ocean-based industries are essential for economic prosperity for us. Seafood, energy, and the maritime industry are areas that we rely on. We need to work with other Arctic coastal nations to develop new industries such as marine biotechnology, seabed mining, and improved maritime transport. Our expertise in these areas should be used as a tool to expand influence with Canada and Russia.

Red Line:

- Any claims on, or licenses granted to, exploration/exploitation of resources within the Svalbard EEZ by foreign governments.
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Environment

Preservation of the fragile Arctic ecosystem is at risk due to climate change, increased human traffic, and resource extraction. Efforts to extract the resources beneath the Arctic Ocean must be done with an effort towards minimal ecological impact and environmental protection. This balance must be done by all Arctic nations to ensure the whole region is developed smartly.

Our environmental targets for the Svalbard archipelago are very ambitious. The current wilderness-like areas are to be retained. Our integrated maritime management plan is our main tool to ensure fish stocks provide now and for our future.

The marine ecosystem is still not completely understood. With the recent banning of commercial fishing, in the Arctic high seas, time will allow further study and understanding of this resource. Monitoring of the commercial fishing ban must be a multilateral effort of the nine nation signatories. The joint programme of scientific monitoring must continue to inform decisions on extension of this moratorium.

All nations must adhere to the Paris Climate Agreement and take further actions to reduce carbon emissions. In order to preserve our Arctic ecosystem, we insist that China and the U.S., the two largest carbon emitters, take more aggressive action to reduce their carbon footprint.

Governance

The UNCLOS treaty provides a means of settling disputes among signatory nations with regards to Arctic waters. The conflict between UNCLOS and previous treaties and agreements provides areas of disagreement between states. The Svalbard Treaty provides enough guidance to the sovereignty of the Svalbard archipelago and does not need to be reformed.

The Arctic Council was formed as a high-level forum to provide means for promoting cooperation, coordination, and interaction among the Arctic states. Key elements of governance and security are not discussed during council sessions and we support this remaining the case.

Though we supported China receiving observer status we do not support China becoming full members of the Arctic Council. They have interest in the Arctic but are not an Arctic state.

Red Lines:

Any attempt to make China a member state of the Arctic Council.

Population

We find it important that Indigenous peoples' organisations are represented in the Arctic Council. We encourage their participation in the work the Council does at a variety of levels.

We have included the Sami (Saami) in our Parliament and they have representation across our Nordic Council membership. Our own constitution was amended in 1988 to declare the responsibility of the state to create conditions enabling Sami people to preserve and develop their way of life, language, and culture.

The Indigenous Peoples of Russia have continually had their lands, and their traditional use, exploited in favor of energy companies. Their government has criticized indigenous rights groups as foreign agents to delegitimise.